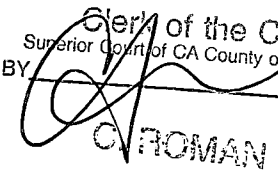


ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Dennis M. McCarthy, Esquire, PA Atty. I.D. #73320 645 Hamilton Street, Suite 510 Allentown, PA 18101 TELEPHONE NO.: 610-435-0450 FAX NO. (Optional): 610-435-3089 E-MAIL ADDRESS (Optional): dmccarthy@davisonmccarthy.com ATTORNEY FOR (Name): Jane Schubert and Muhlenberg College	FOR COURT USE ONLY FILED FEB 07 2024 Clerk of the Court Superior Court of CA County of Santa Clara BY  DEPUTY C. ROMAN
Court for county in which discovery is to be conducted: Santa Clara SUPERIOR COURT OF CALIFORNIA, COUNTY OF Santa Clara STREET ADDRESS: Civil Division MAILING ADDRESS: 191 North First Street CITY AND ZIP CODE: San Jose, CA 95113 BRANCH NAME: Downtown Superior Court	
Court in which action is pending: Lehigh County Name of Court: COURT OF COMMON PLEAS OF LEHIGH COUNTY STREET ADDRESS: Lehigh County Courthouse MAILING ADDRESS: 455 W. Hamilton Street CITY, STATE, AND ZIP CODE: Allentown, PA 18101-1614 COUNTRY: USA	
PLAINTIFF/PETITIONER: Jane Schubert and Muhlenberg College DEFENDANT/RESPONDENT: John Doe and John Doe 2	CALIFORNIA CASE NUMBER (if any assigned by court) 24CV430531
APPLICATION FOR DISCOVERY SUBPOENA IN ACTION PENDING OUTSIDE CALIFORNIA	CASE NUMBER (of action pending outside California): 2023-C-2820

1. Applicant (name): **Jane Schubert and Muhlenberg College** is (check one):
☒ Plaintiff ☐ Petitioner ☐ Defendant ☐ Respondent ☐ Other (specify):
 in the above action.
2. Applicant requests that this court issue a subpoena for discovery under Code of Civil Procedure sections 2029.100 – 2029.900 to (name and address of deponent or person in control of property):
YouTube, LLC, Attn: CSC-Lawyers Incorporating Service, 2710 Gateway Oaks Drive, Suite 150N, Sacramento, California 95833
3. Attached is (check one): ☒ the original ☐ a true and correct copy of the document from the court in which the action is pending that requires the person in 2 to (check all that apply):
 a. ☐ attend and give testimony at a deposition;
 b. ☒ produce and permit inspection and copying of designated materials, information, or tangible things in the possession, custody, or control of the deponent;
 c. ☐ permit the inspection of premises under the control of the deponent.
4. Applicant submits with this application a proposed subpoena that includes terms identical to those in the document from the out-of-state court. (Code of Civil Procedure section 2029.300(d).)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: **2/2/2024**

Dennis M. McCarthy, Esquire

(TYPE OR PRINT NAME)



(SIGNATURE OF ATTORNEY OR PARTY WITHOUT ATTORNEY)

Note: This application must be accompanied by the fee specified in Government Code section 70626. A discovery subpoena must be personally served on the deponent in compliance with California law, including Code of Civil Procedure section 1985.

**COMMONWEALTH OF PENNSYLVANIA
COUNTY OF LEHIGH**

Jane Schubert and Muhlenberg
College

Plaintiffs

v.

John Doe and John Doe 2

Defendants

FILE NO. 2023-C-2820

CIVIL DIVISION

**CIVIL SUBPOENA TO PRODUCE DOCUMENTS OR THINGS
FOR DISCOVERY PURSUANT TO RULE 4009.22**

TO: YouTube, LLC

(Name of Person or Entity)

Within twenty (20) days after service of this subpoena, you are ordered by the court to produce the following documents or things: See Exhibit A attached

at 645 Hamilton Street, Suite 510, Allentown, PA 18101
(Address)

You may deliver or mail legible copies of the documents or produce things requested by this subpoena, together with the certificate of compliance, to the party making this request at the address listed above. You have the right to seek in advance the reasonable cost of preparing the copies or producing the things sought.

If you fail to produce the documents or things required by this subpoena within twenty (20) days after its service, the party serving this subpoena may seek a court order compelling you to comply with it.

THIS SUBPOENA WAS ISSUED AT THE REQUEST OF THE FOLLOWING PERSON:

NAME: Dennis M. McCarthy, Esquire

ADDRESS: 645 Hamilton Street, Suite 510
Allentown, PA 18101

TELEPHONE: 610-435-0450

SUPREME COURT ID # 73320

BY THE COURT: Michelle Graupner
Clerk of Judicial Records

DATE: _____

Jacqueline Baughman

Deputy

SEAL OF THE COURT

Notice of Language Rights

Language Access Coordinator

455 W. Hamilton Street

Allentown, PA 18101

610-782-3311

LanguageAccessCoordinator@lehighcounty.org

English: You have the right to an interpreter at no cost to you. To request an interpreter, please inform court staff using the contact information provided at the top of this notice.

Spanish/Español: Usted tiene derecho a un intérprete libre de costo. Para solicitar un intérprete favor de informárselo al personal judicial utilizando la información provista en la parte superior de este aviso.

Mandarin/Cantonese Simplified Chinese/普通话/粤语简体中文: 您有权获得免费的口译员服务。若需要口译员，请使用本通知上方提供的联系信息通知法院工作人员。

العربية/Arabic: يحق لك الحصول على مترجم دون دفع أي تكلفة من جانبك. لطلب مترجم، يرجى إعلام موظفي المحكمة باستخدام معلومات الاتصال المقدمة في الجزء العلوي من هذا الإشعار.

Vietnamese/Tiếng Việt: Quý vị có quyền được một thông dịch viên giúp mà không tốn chi phí nào cả, xin hãy báo cho nhân viên tòa án dùng thông tin liên lạc có ở trên đầu thông báo này.

Korean/한국어: 귀하는 비용에 대한 부담 없이 통역 서비스를 받을 권리가 있습니다. 통역 서비스를 요청하려면 본 통지서의 상단에 기재된 연락처를 통해 법원 직원에게 알려십시오.

RETURN OF SERVICE:

On the _____ day of _____, 20____

I _____ served _____

(Requestor's Name)

(Name of Person Served)

with the foregoing subpoena by: _____

(Describe Method of Service)

I verify that the statements in this return of service are true and correct. I understand that false statements herein are made subject to the penalties of 18 Pa. C.S.A. § 4904 relating to unsworn falsification to authorities.

DATE: _____

(Signature)

Exhibit "A"

The records to be produced are described as follows regarding the Channel <https://www.youtube.com/@MuhlenbergNews> and/or URL <https://www.youtube.com/watch?v=hRXcFojWaqI> and/or URL <https://www.youtube.com/watch?v=fBZ0svfIL8I> and/or <https://www.youtube.com/watch?v=mdcw906aeY>, the Channel/URL that contains the video on Jane Schubert titled "Jane Schubert of Muhlenberg College former associate dean of students has a dark secret" and/or "Karen Green comments of Jane Schubert from Muhlenberg College allegations" and/or "Allison Williams from Muhlenberg Dean of Students comments on Jane Schubert's demotion". Including but not limited to:

- 1 Video content details ("Content"):
 - a. Channel information- including but not limited to, playlists created and subscriptions made on the Channel (A "Channel" on YouTube refers to a user's personal or professional account where they can upload, share, and organize videos.);
 - b. Video Uniform Resource Locators (URL);
 - c. date of publication; and
 - d. associated metadata. (metadata- the information associated with a video that provides additional context and details about the content.)
2. User ("Use") information for Content: (user- an individual who has established an account on the platform for activities such as uploading, viewing, commenting on, and engaging with videos.)
 - a. Username;
 - b. email address;
 - c. IP address;
 - d. profile picture;
 - e. geographical information-all of the locations from which the User's accounts were accessed; and
 - f. other identifying information.
3. Video records:
 - a. Metadata for uploaded videos (titles, descriptions, tags, etc.) to the Content;
 - b. upload dates and times for specific videos; and
 - c. linked videos.
- 4 Analytics and usage data of the Content:
 - a. View counts- dates and watch times of views, usernames, IP (Internet Protocol) address(es), geographical, demographical information associated with views;
 - b. likes- dates and times of likes, usernames, IP (Internet Protocol) address(es), geographical, and demographical information associated with likes;
 - c. dislikes- dates and times of dislikes, usernames, IP (Internet Protocol) address(es), geographical, and demographical information associated with dislikes;
 - d. relevant comments or interactions on the Content- dates and times of comments and interactions, usernames, IP (Internet Protocol) address(es), geographical, and demographical information associated with comments and interactions;

- e. device information; and
 - f. other relevant engagement metrics.
- 5 Account settings and activity with the Content:
 - a. Privacy, playback and notification settings;
 - b. language and location preferences; and
 - c. any history of account changes or settings adjustments.
 - 6 Subscriber information: ("Subscriber" we are referring to a user who has chosen to follow User's Channels.)
 - a. Names and profiles of Subscribers;
 - b. dates of subscription; and
 - c. logs of IP addresses used to access User's Content; and timestamps of these accesses.
 - 7 Account history and linked accounts:
 - a. All accounts affiliated and/or owned by User; and
 - b. Google and/or social media accounts connected to Content and/or User.
 - 8 Content removal or flagging history of the User:
 - a. Information about Google and/or YouTube's actions in response to any reports, if any, against User;
 - b. usernames and email addresses associated with any of User's removed or flagged accounts;
 - c. IP addresses used to access all the User's removed or flagged accounts; and
 - d. dates of account creation and last login of all of User's accounts.
 - 9 Ad revenue and monetization data:
 - a. Information related to ad revenue earned from YouTube by User. (if applicable).
 - 10 Any Communications with the User:
 - b. Messages sent through YouTube's messaging system or other forms of communication facilitated by the platform.

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): Dennis M. McCarthy, Esquire PA Atty. I.D. #73320 645 Hamilton Street, Suite 510 Allentown, PA 18101 TELEPHONE NO.: 610-435-0450 FAX NO.: 610-435-3089 E-MAIL ADDRESS: dmccarthy@davisonmccarthy.com ATTORNEY FOR (Name): Jane Schubert and Muhlenberg College	FOR COURT USE ONLY
Court for county in which discovery is to be conducted: Santa Clara SUPERIOR COURT OF CALIFORNIA, COUNTY OF Santa Clara STREET ADDRESS: Civil Division MAILING ADDRESS: 191 North First Street CITY, STATE, AND ZIP CODE: San Jose, CA 95113 BRANCH NAME: Downtown Superior Court	
Court in which action is pending: Lehigh County Name of Court: COURT OF COMMON PLEAS OF LEHIGH COUNTY STREET ADDRESS: Lehigh County Courthouse MAILING ADDRESS: 455 W. Hamilton Street CITY, STATE, AND ZIP CODE: Allentown, PA 18101-1614 COUNTRY: USA	
PLAINTIFF/PETITIONER: Jane Schubert and Muhlenberg College DEFENDANT/RESPONDENT: John Doe and John Doe 2	CALIFORNIA CASE NUMBER (if any assigned by court):
SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS IN ACTION PENDING OUTSIDE CALIFORNIA	CASE NUMBER (of action pending outside California): 2023-C-2820

THE PEOPLE OF THE STATE OF CALIFORNIA, TO (name, address, and telephone number of deponent, if known):

YouTube, LLC, Attn: CSC-Lawyers Incorporating Service, 2710 Gateway Oaks Drive, Suite 150N, Sacramento, California 95833

1. YOU ARE ORDERED TO PRODUCE THE BUSINESS RECORDS described in item 3, as follows:

To (name of deposition officer): Dennis M. McCarthy, Esq.	
On (date):	At (time):
Location (address): 645 Hamilton Street, Suite 510, Allentown, PA 18101	
Do not release the requested records to the deposition officer prior to the date and time stated above.	

- ☐ by delivering a true, legible, and durable **copy** of the business records described in item 3, enclosed in a sealed inner wrapper with the title and number of the action, name of witness, and date of subpoena clearly written on it. The inner wrapper shall then be enclosed in an outer envelope or wrapper, sealed, and mailed to the deposition officer at the address in item 1.
 - ☒ by delivering a true, legible, and durable **copy** of the business records described in item 3 to the deposition officer at the witness's address, on receipt of payment in cash or by check of the reasonable costs of preparing the copy, as determined under Evidence Code section 1563(b).
 - ☐ by making the **original** business records described in item 3 available for inspection at your business address by the attorney's representative and permitting **copying** at your business address under reasonable conditions during normal business hours.
2. The records are to be produced by the date and time shown in item 1 (but not sooner than 20 days after the issuance of the deposition subpoena, or 15 days after service, whichever date is later). Reasonable costs of locating records, making them available or copying them, and postage, if any, are recoverable as set forth in Evidence Code section 1563(b). The records must be accompanied by an affidavit of the custodian or other qualified witness pursuant to Evidence Code section 1561.
3. The records to be produced are described as follows (if electronically stored information is demanded, the form or forms in which each type of information is to be produced may be specified):
- ☒ Continued on Attachment 3 (use form MC-025).
4. Attorneys of record in this action or parties without attorneys are (name, address, telephone number, and name of party represented):
- ☒ Continued on Attachment 4 (use form MC-025).

PLAINTIFF/PETITIONER: Jane Schubert and Muhlenberg College	CASE NUMBER (of action pending outside California): 2023-C-2820
DEFENDANT/RESPONDENT: John Doe and John Doe 2	

5. If you have been served with this subpoena as a custodian of consumer or employee records under Code of Civil Procedure section 1985.6 and a motion to quash or an objection has been served on you, a court order or agreement of the parties, witnesses, and consumer or employee affected must be obtained before you are required to produce consumer or employee records.
6. ☐ Other terms or provisions from out-of-state subpoena, if any (specify):

☐ Continued on Attachment 6 (use form MC-025).

DISOBEDIENCE OF THIS SUBPOENA MAY BE PUNISHED AS CONTEMPT BY THIS COURT. YOU WILL ALSO BE LIABLE FOR THE SUM OF \$500 AND ALL DAMAGES RESULTING FROM YOUR FAILURE TO OBEY.

Date issued:

(TYPE OR PRINT NAME)

(SIGNATURE OF PERSON ISSUING SUBPOENA)

(TITLE)

PROOF OF SERVICE OF SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS

1. I served this Subpoena for Production of Business Records In Action Pending Outside California by personally delivering a copy to the person served as follows:
 - a. Person served (name):
 - b. Address where served:
 - c. Date of delivery:
 - d. Time of delivery:
 - e. Witness fees and mileage both ways (check one):
 - (1) ☐ were paid. Amount: \$ _____
 - (2) ☐ were not paid.
 - (3) ☐ were tendered to the witness's public entity employer as required by Government Code section 68097.2. The amount tendered was (specify): \$ _____
 - f. Fee for service: \$ _____
2. I received this subpoena for service on (date):
3. ☐ I also served a completed Proof of Service of Notice to Consumer or Employee and Objection (form SUBP-025) by personally delivering a copy to the person served as described in 1 above.
4. Person serving:
 - a. ☐ Not a registered California process server
 - b. ☐ California sheriff or marshal
 - c. ☐ Registered California process server
 - d. ☐ Employee or independent contractor of a registered California process server
 - e. ☐ Exempt from registration under Business and Professions Code section 22350(b)
 - f. ☐ Registered professional photocopier
 - g. ☐ Exempt from registration under Business and Professions Code section 22451
 - h. Name, address, telephone number, and, if applicable, county of registration and number:

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

(For California sheriff or marshal use only)
I certify that the foregoing is true and correct.

Date:

(SIGNATURE)

(SIGNATURE)

**COMMONWEALTH OF PENNSYLVANIA
COUNTY OF LEHIGH**

Jane Schubert and Muhlenberg
College

Plaintiffs

v.

John Doe and John Doe 2

Defendants

FILE NO. 2023-C-2820

CIVIL DIVISION

**CIVIL SUBPOENA TO PRODUCE DOCUMENTS OR THINGS
FOR DISCOVERY PURSUANT TO RULE 4009.22**

TO: YouTube, LLC

(Name of Person or Entity)

Within twenty (20) days after service of this subpoena, you are ordered by the court to produce the following documents or things: See Exhibit A attached

at 645 Hamilton Street, Suite 510, Allentown, PA 18101
(Address)

You may deliver or mail legible copies of the documents or produce things requested by this subpoena, together with the certificate of compliance, to the party making this request at the address listed above. You have the right to seek in advance the reasonable cost of preparing the copies or producing the things sought.

If you fail to produce the documents or things required by this subpoena within twenty (20) days after its service, the party serving this subpoena may seek a court order compelling you to comply with it.

THIS SUBPOENA WAS ISSUED AT THE REQUEST OF THE FOLLOWING PERSON:

NAME: Dennis M. McCarthy, Esquire
ADDRESS: 645 Hamilton Street, Suite 510
Allentown, PA 18101
TELEPHONE: 610-435-0450
SUPREME COURT ID # 73320

BY THE COURT: **Michelle Graupner**
Clerk of Judicial Records

DATE: _____

Jequeline Baughman

Deputy

SEAL OF THE COURT

Exhibit "A"

The records to be produced are described as follows regarding the Channel <https://www.youtube.com/@MuhlenbergNews> and/or URL <https://www.youtube.com/watch?v=hRXcFojWaqI> and/or URL <https://www.youtube.com/watch?v=fBZ0svfIL8I> and/or https://www.youtube.com/watch?v=_mdcw906aeY, the Channel/URL that contains the video on Jane Schubert titled "Jane Schubert of Muhlenberg College former associate dean of students has a dark secret" and/or "Karen Green comments of Jane Schubert from Muhlenberg College allegations" and/or "Allison Williams from Muhlenberg Dean of Students comments on Jane Schubert's demotion". Including but not limited to:

- 1 Video content details ("Content"):
 - a. Channel information- including but not limited to, playlists created and subscriptions made on the Channel (A "Channel" on YouTube refers to a user's personal or professional account where they can upload, share, and organize videos.);
 - b. Video Uniform Resource Locators (URL);
 - c. date of publication; and
 - d. associated metadata. (metadata- the information associated with a video that provides additional context and details about the content.)
2. User ("Use") information for Content: (user- an individual who has established an account on the platform for activities such as uploading, viewing, commenting on, and engaging with videos.)
 - a. Username;
 - b. email address;
 - c. IP address;
 - d. profile picture;
 - e. geographical information-all of the locations from which the User's accounts were accessed; and
 - f. other identifying information.
3. Video records:
 - a. Metadata for uploaded videos (titles, descriptions, tags, etc.) to the Content;
 - b. upload dates and times for specific videos; and
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 - c. dislikes- dates and times of dislikes, usernames, IP (Internet Protocol) address(es), geographical, and demographical information associated with dislikes;
 - d. relevant comments or interactions on the Content- dates and times of comments and interactions, usernames, IP (Internet Protocol) address(es), geographical, and demographical information associated with comments and interactions;

- e. device information; and
 - f. other relevant engagement metrics.
- 5 Account settings and activity with the Content:
 - a. Privacy, playback and notification settings;
 - b. language and location preferences; and
 - c. any history of account changes or settings adjustments.
 - 6 Subscriber information: ("Subscriber" we are referring to a user who has chosen to follow User's Channels.)
 - a. Names and profiles of Subscribers;
 - b. dates of subscription; and
 - c. logs of IP addresses used to access User's Content; and timestamps of these accesses.
 - 7 Account history and linked accounts:
 - a. All accounts affiliated and/or owned by User; and
 - b. Google and/or social media accounts connected to Content and/or User.
 - 8 Content removal or flagging history of the User:
 - a. Information about Google and/or YouTube's actions in response to any reports, if any, against User;
 - b. usernames and email addresses associated with any of User's removed or flagged accounts;
 - c. IP addresses used to access all the User's removed or flagged accounts; and
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 - 9 Ad revenue and monetization data:
 - a. Information related to ad revenue earned from YouTube by User. (if applicable).
 - 10 Any Communications with the User:
 - b. Messages sent through YouTube's messaging system or other forms of communication facilitated by the platform.